

submitting the government claim.

- **Overruled** regarding Laurie Rockwell's claims.
- **Overruled** as to the second cause of action for nuisance.
- **Sustained** as to the third cause of action for trespass, without leave to amend.

10. 9:00 AM CASE NUMBER: C24-03551
CASE NAME: LAMOND KING VS. MOISES BARRAGAN RAMIREZ
***HEARING ON MOTION IN RE: BE RELIEVED AS COUNSEL**
FILED BY: KING, LAMOND
TENTATIVE RULING:

The motion to be relieved as counsel by counsel for Lamond King is **GRANTED**.

Notice to Lamond King: You may wish to seek legal assistance. If you do not have a new attorney to represent you in this action or proceeding, and you are legally permitted to do so, you will be representing yourself. It will be your responsibility to comply with all court rules and applicable laws. If you fail to do so, or fail to appear at hearings, action may be taken against you. You may lose your case.

11. 9:00 AM CASE NUMBER: C25-01498
CASE NAME: STEVEN IMBURGIA VS. ALEJANDRO SACUL GOC
***HEARING ON MOTION IN RE: INTERVENE**
FILED BY: PROGRESSIVE INSURANCE COMPANY
TENTATIVE RULING:

This motion has already been addressed by stipulation and order filed February 26, 2026.

12. 9:00 AM CASE NUMBER: C25-02263
CASE NAME: THOMAS GODDARD VS. 1910 N. MAIN STREET APARTMENTS CAPITAL LLC, A DELAWARE LIMITED LIABILITY COMPANY
***HEARING ON MOTION IN RE: TO CONSOLIDATE UNLAWFUL DETAINER (MS25-0977) WITH CIVIL RIGHTS ACTION (C25-02263) PURSUANT TO CCP 1048**
FILED BY: GODDARD, THOMAS JOSEPH
TENTATIVE RULING:

Before the Court is Plaintiff Thomas Goddard's Motion to Consolidate Unlawful Detainer (MS25-0977) with Civil Rights Action (C25-02263).

Plaintiff's Motion is **denied**.

Factual Allegations and Procedural Background

The focus of this matter is a dispute between a tenant (Plaintiff) and his landlord (Defendants). Plaintiff resides at an apartment located at 1910 N. Main Street, Unit 627, in Walnut Creek, California ("Property"). Defendant 1910 N. Main Street Apartments Capital LLC ("1910 Apartments") owns the Property and Defendant Sares Regis Group Residential, Inc. ("Sares") manages it.

On August 15, 2025, Plaintiff filed the Complaint in this instant matter. The Complaint alleges twelve causes of action. Notably, the first (Fair Housing Act – disability discrimination), third (fair housing Act – retaliation), and fifth (Unruh Civil Rights Act) causes of action are also alleged in the Federal case cited above.

On November 17, 2025, Defendant 1910 Apartments initiated an unlawful detainer action against Plaintiff (case No. MS25-0977). On January 26, 2026, the court entered a default judgment against Plaintiff. Notice of entry of judgment was sent on January 28, 2026. A writ of possession was issued on January 30, 2026. Plaintiff filed a notice of appeal on February 17, 2026. A stay of execution was issued, staying the order through February 27, 2026. The appeal was dismissed on April 6, 2026.

Defendant's counsel indicates that the Sheriff's department completed a lockout of the Property on March 5, 2026. In addition, they are informed that of April 9, 2026, Plaintiff has removed all his personal items from the Property and has vacated the premises.

Legal Standard

When actions involving a common question of law or fact are pending before the court, it may order a joint hearing or trial of any or all of the matters in issue in the actions; it may order all the actions consolidated and it may make such orders concerning proceedings therein as may tend to avoid unnecessary costs or delay." (Code Civ. Proc. § 1048(a).) The purpose of consolidation is to enhance trial court efficiency by avoiding unnecessary duplication of evidence and the danger of inconsistent adjudications. (*Todd-Stenberg v. Dalkon Shield Claimants Trust* (1996) 48 Cal.App.4th 976, 978-79.)

The decision to consolidate is left to the sound discretion of the trial court based on its assessment of various factors, including whether there are common issues of fact or law, and even if there are, whether other factors, such as potential prejudice to one or more parties, delay, confusion or other considerations do not warrant consolidation. (*Todd Steinberg v. Dalkon Shield Claimants Trust* (1996) 48 Cal.App.4th 976, 978-979 ["Code of Civil Procedure section 1048 grants discretion to the trial courts to consolidate actions involving common questions of law or fact. The trial court's decision will not be disturbed on appeal absent a clear showing of abuse of discretion."])

Analysis

As outlined above, the UD action underlying this Motion has been completely resolved. As such, there is nothing left to consolidate. In other words, the current Motion is moot. A case becomes moot when "the question addressed was at one time a live issue in the case," but has lost its life "because of events occurring after the judicial process was initiated." (*Younger v. Superior Court* (1978) 21 Cal.3d 102, 120.) "[T]he duty of this court ... is to decide actual controversies ... and not to give opinions upon moot questions or abstract propositions...." (*Consol. etc. Corp. v. United A. etc. Workers* (1946) 27 Cal.2d 859, 863.)

As the underlying UD action has been completely resolved, Plaintiff has already appealed that

decision – which was dismissed, and Plaintiff has already been removed from and vacated the Property, there is no longer any case to be consolidated.

Conclusion

Plaintiff's motion to consolidate the unlawful detainer action, case no. MS25-0977, with this action is **denied**.

13. 9:00 AM CASE NUMBER: C25-02635
CASE NAME: LORENDIA HOUSE VS. BARCELON ASSOCIATES MANAGEMENT CORP.
HEARING ON DEMURRER TO: COMPLAINT
FILED BY: BARCELON ASSOCIATES MANAGEMENT CORP.
TENTATIVE RULING:

Before the Court is a demurrer filed by defendant, Barcelon Associates Management Corp. The demurrer is **sustained with leave to amend**, as discussed below. Any amended complaint shall be filed and served on or before July 13, 2026. If plaintiff elects not to amend, defendant's time to answer shall run from that date.

Background

In September of 2025, plaintiff Lorenda House, a 63-year-old female, filed a complaint against Barcelon Associates Management Corp. ("defendant") and Does 1-30. (Complaint, ¶¶11-12.) Plaintiff alleges she was a non-exempt manager / admin employee of "defendants" from approximately March 9, 2017 until February 28, 2023. (*Ibid.*) In or about September 2022, plaintiff felt severe stress from her job and therefore took "family medical leave." (*Id.* at ¶13.) While on leave, in October, plaintiff's mother died and plaintiff felt "further stress and anxiety." (*Ibid.*) Plaintiff returned to work around November 13, 2022. (*Ibid.*)

Upon her return to work, plaintiff's job duties were taken away. (Complaint, ¶14.) She was not allowed to check the mail or answer phone calls and when she lost her work keys, she was not given another copy. (*Ibid.*) Plaintiff's job duties were given to younger coworkers, which she complained about to "Victoria and Defendant's Board of Directors." (*Ibid.*)

Plaintiff alleges her employment was wrongfully terminated due to her age and disability / medical condition, in retaliation for her reasonable request for accommodation and for taking the medical leave, and in retaliation for her complaints of discrimination based on her age. (Complaint, ¶15.) She further alleges that, although she used her personal mobile phone for work, and worked off the clock, she was not compensated for such off-the-clock work, or reimbursed for the personal device. (*Id.* at ¶¶16-17.)

The complaint sets forth causes for action for (1) Failure to Reimburse Business Expenses, (2) Age Harassment / Discrimination, (3) Disability / Medical Condition Discrimination, (4) Failure to Engage in the Interactive Process, (5) Failure to Accommodate Disability, (6) Failure to Take Reasonable Steps to Prevent Harassment, Discrimination, and Retaliation, (7) Retaliation, (8) Wrongful Termination, (9) Unfair Business Practices, (10) Failure to Pay Minimum, Regular, And Overtime Wages, (11) Failure to Pay Waiting Time (Wage Continuation) Penalties, and (12) Failure to Provide Accurate, Itemized Wage Statements.